

Finally, Defendants’ argument that a court does not consider the validity of the proposed amended pleading on a motion for leave is overstated. A court of course has discretion to deny leave to amend where a proposed amendment fails to state a legally valid cause of action or defense. (*Cal. Casualty Gen. Ins. Co. v. Sup. Ct.* (1985) 173 Cal.App.3d 274, 280-81.) Such denial is most appropriate where the pleading is deficient as a matter of law and the defect could not be cured by further appropriate amendment. (*Ibid.*) Here, for the reasons discussed above, it appears to the Court that Defendants’ claims against BAC are deficient as a matter of law and that the defect cannot be cured by amendment.

Based on the foregoing, as well as the fact that trial in this matter is only 3.5 months away, and the case has been continued multiple times, the motion is DENIED.

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Mark Andrews v. Richard Rockwell et al

24CV000304

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION
TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The matter is CONTINUED to July 22, 2026, at 8:30 a.m. in Dept. A.

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Colt Builders Corp. v. Russell Square Consulting, Inc. et al

25CV000412

[1] PLAINTIFF’S MOTION TO COMPEL RESPONSES TO REQUESTS FOR
ADMISSION BY JSP AMERICAN CANYON LLC; REQUEST FOR MONETARY
SANCTIONS

TENTATIVE RULING: The motion is DENIED. The parties’ respective requests for sanctions are DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. (“Plaintiff”) moves, pursuant to Code of Civil Procedure sections 2033.220, subdivision (a), and 2033.290, subdivision (d),³ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to serve verified responses to Plaintiff’s Requests

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.